

The Insurance Regulatory And Development Authority (Obligations Of Insurers To Rural Or Social Sectors) Regulations, 2002

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The Insurance Regulatory And Development Authority (Obligations Of Insurers To Rural Or Social Sectors) Regulations, 2002

Rule

THE-INSURANCE-REGULATORY-AND-DEVELOPMENT-AUTHORITY-OBLIGATIONS-OF-INSURERS-TO-RURAL-OR-SOCIAL-SECTORS-REGULATIONS-2002 of 2002

Published on 16 October 2002

Commenced on 16 October 2002

[This is the version of this document from 16 October 2002.]

[Note: The original publication document is not available and this content could not be verified.]

The Insurance Regulatory And Development Authority (Obligations Of Insurers To Rural Or Social Sectors) Regulations, 2002

Published vide F. No. IRDA/Reg/10/2002, dated 16.10.2002, published in the Gazette of India, Extraordinary, Part III, Section 4, dated 17.10.2002.

14.

/670

In exercise of the powers conferred by section 32-C read with section 32-B of the Insurance Act, 1938 (4 of 1938

), the Authority, in consultation with the Insurance Advisory Committee, hereby makes the following regulations to substitute the Insurance Regulatory and Development Authority (Obligations of Insurers to Rural or Social Sectors) Regulations, 2000, namely:-

1.

Short title and commencement .-(1) These regulations may be called The Insurance Regulatory and Development Authority (Obligations of Insurers to Rural or Social Sectors) Regulations, 2002.

(2)

They shall come into force from the date of their publication in the Official Gazette.

2.

Definitions .-In these regulations, unless the context otherwise requires,-

(a)

"Act" means the Insurance Act, 1938 (

4 of 1938

);

(b)

"Authority" means the Insurance Regulatory and Development Authority established under the provisions of section 3 of the Insurance Regulatory and Development Authority Act, 1999 (

41 of 1999

);

(c)

"rural sector" shall mean any place as per the latest census which meets the following criteria:-

(i)

a population of less than five thousand;

(ii)

a density of population of less than four hundred per square kilometer; and

(iii)

more than twenty-five per cent. of the male working population is engaged in agricultural pursuits.

Explanation .-The categories of workers falling under agricultural pursuits are as under:

(i)

Cultivators;

(ii)

Agricultural labourers;

(iii)

Workers in livestock, forestry, fishing, hunting and plantations, orchards and allied activities;

(d)

"social sector" includes unorganized sector, informal sector, economically vulnerable or backward classes and other categories of persons, both in rural and urban areas;

(e)

"unorganized sector" includes self-employed workers such as agricultural labourers, bidi workers, brick kiln workers, carpenters, cobblers, construction workers, fishermen, hamals, handicraft artisans, handloom and khadi workers, lady tailors, leather and tannery workers, papad makers, powerloom workers, physically handicapped self-employed persons, primary milk producers, rickshaw pullers, safai karmacharis, salt growers, seri culture workers, sugarcane cutters, tendu leaf collectors, toddy tappers, vegetable vendors, washerwomen, working women in hills, or such other categories of persons;

(f)

"economically vulnerable or backward classes" means persons who live below the poverty line;

(g)

"other categories of persons" includes persons with disability as defined in the Persons with Disabilities (Equal

Opportunities, Protection of Rights and Full Participation) Act, 1995 (1 of 1996

) and who may not be gainfully employed; and also includes guardians who need insurance to protect spastic persons or persons with disability;

(h)

"informal sector" includes small scale, self-employed workers typically at a low level of organization and technology, with the primary objective of generating employment and income, with heterogeneous activities like retail trade, transport, repair and maintenance, construction, personal and domestic services and manufacturing, with the work mostly labour intensive, having often unwritten and informal employer-employee relationship;

(i)

all words and expressions used herein and not defined herein but defined in the Insurance Act, 1938 (4 of 1938

), or in the Insurance Regulatory and Development Authority Act, 1999 (41 of 1999

), shall have the meanings respectively assigned to them in those Acts.

3.

Obligations .-Every insurer, who begins to carry or insurance business after the commencement of the Insurance Regulatory and Development Authority Act, 1999 (41 of 1999

), shall, for the purposes of sections 32-B and 32-C of the Act, ensure that he undertakes the following obligations, during the first five financial years, pertaining to the persons in-

(a)

rural sector,

(i)

in respect of a life insurer,-

(I)

seven per cent. in the first financial year;

(II)

nine per cent. in the second financial year;

(III)

twelve per cent. in the third financial year;

(IV)

fourteen per cent. in the fourth financial year;

(V)

sixteen per cent. in the fifth financial year, of total policies written direct in that year;

(ii)

in respect of a general insurer,-

(I)

two per cent. in the first financial year;

(II)

three per cent. in the second financial year;

(III)

five per cent. thereafter, of total gross premium income written direct in that year;

(b)

social sector, in respect of all insurers,-

(I)

five thousand lives in the first financial year;

(II)

seven thousand five hundred lives in the second financial year;

(III)

ten thousand lives in the third financial year;

(IV)

fifteen thousand lives in the fourth financial year;

(V)

twenty thousand lives in the fifth financial year:

Provided that in the first financial year, where the period of operation is less than twelve months, proportionate percentage or number of lives, as the case may be, shall be undertaken:

Provided further that, in case of a general insurer, the obligations specified shall include insurance for crops:

Provided further that the Authority may normally, once in every five years, prescribe or revise the obligations as specified in this regulation.

4.

Obligations of existing insurers .-(1) The obligations of existing insurers as on the date of commencement of IRDA Act shall be decided by the Authority after consultation with them and the quantum of insurance business to be done shall not be less than what has been recorded by them for the accounting year ended 31st March, 2002.

(2)

The Authority shall review such quantum of insurance business periodically and give directions to the insurers for achieving the specified targets.

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